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METHOD: Electronic service per stipulation; courtesy copy by United States Mail

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Re: *Rosario v. Abdelhalim, CSAA Insurance Exchange, Phillips, Spallas & Angstadt LLP, Priya D. Navaratnasingham, Alberto Reyna, Michael R. Chambers, Carbone, Smith & Koyama, et al.* (San Francisco Superior Court Case No. **CGC-25-631801**; Related: CGC-21-594102)

Subject: Supplement and reiteration of plaintiff's prior April 22, 2026 Code of Civil Procedure section 128.7(c)(1) safe-harbor correspondence; identification of specific certifications requiring withdrawal or correction; case-isolated record for **CGC-25-631801 only**; coordination with the same-day court-facing packet; and **express demand for acknowledgment to the tribunal of plaintiff's April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter.**

Counsel:

Statement of Purpose for Amendment. Plaintiff seeks leave to **perfect** the operative pleading by conforming it to evidence already in the record (Plaintiff's April 25, 2026 TAC-Aligned Merits Letter and Plaintiff's opposition to defendants' special motion to strike). Plaintiff does **not** seek leave to escape, evade, or moot any merits ruling on the protected-conduct allegations of the FAC. The motion is noticed under Code of Civil Procedure §§ **473(a)(1) and 576**. Published authority - including *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, **471–472, 477–478** - addresses amendment in the shadow of **CCP § 425.16** and confirms California law does **not** impose a **categorical** amendment freeze; the sequencing answer includes **CCP § 425.16(f)**. Plaintiff **accepts** the anti-subversion line (*Simmons; Colton; Ellis; Contreras*) and cites *JKC3H8* **narrowly** for that structural proposition. *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, **871–873** is also referenced as **supporting** authority on **limited** discretion to perfect after a merits showing. General leave principles also include *Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–20; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Trafton v. Youngblood* (1968) 69 Cal.2d 17, 31; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296–297; and, **if and when** a superseding pleading is operative, *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884 read with **CCP § 425.16(f)**. The amendment **arises from the same operative facts** (the February 25, 2021 uninsured-motorist denial and subsequent claim-handling conduct), **vindicates the same primary right** (good-faith claim handling and freedom from fraud), **refers to the same instrumentality** (the same denial letter and the same defendants), and therefore **relates back** to the original December 23, 2025

filing. No new discovery, witnesses, or defense burden is created: defendants have already briefed these exact facts in their demurrer, anti-SLAPP MPA, § 436 motion, and MFL-SAC opposition.

Defendants' Apr 23, 2026 Opposition does not place *JKC3H8* (or *Nguyen-Lam*) in the body or Table of Authorities in a manner that fairly discloses the controlling leave-to-amend / § 425.16 framework on this record. This letter places CRPC 3.3(a)(2) and CCP § 128.7(b)(2)-(b)(3) duties on the record **together with** the anti-subversion authorities and the **§ 425.16(f)** preservation point.

Bench statement (sequencing). Plaintiff **accepts** anti-subversion; the narrow submission is **constrained discretion** under **§§ 473/576** after the merits showing, with **§ 425.16(f)** preserved.

Procedural sequence on the record: (a) April 17, 2026 - plaintiff filed opposition to defendants' special motion to strike; (b) April 25, 2026 - plaintiff served the TAC-Aligned Merits Letter making the section 425.16(b)(1) probability-of-prevailing showing in writing; (c) April 27, 2026 - plaintiff's coordinated filings place that record before the Court and counsel; (d) May 6, 2026 - hearing on plaintiff's motion for leave. Plaintiff's leave request is therefore offered **after** that merits showing (*Nguyen-Lam*, supra, 171 Cal.App.4th at pp. **871–873**, as **supporting** authority on that sequencing posture).

The Defense has represented that no authority exists to allow this amendment. That overstates the opposition's entitlement to a categorical bar. Published authority - including *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468 - shows California law does **not** impose a **total** amendment

freeze; the sequencing answer includes **CCP § 425.16(f)**. Plaintiff cites *JKC3H8* **only** for that modest structural proposition - not to strip anti-SLAPP protection.

Anti-SLAPP threshold defects (defense exposure; read with Supplemental Memorandum and Exhibit A-3). The defense special motions in these companion cases are separately vulnerable for failing a durable *Park gravamen* and Code of Civil Procedure section 425.16 step-one *arising-from* analysis; Civil Code section 47(b) is not a stand-in. The April 23 MFL-SAC opposition, read on the same *filing sequence* as a *facially incomplete first-step anti-SLAPP showing* in the defense papers, implicates **CCP § 128.7 (b)(2)–(b)(3)**, **CCP § 425.16 (c)(1)**, CRPC 3.3 (a)(1)–(a)(2), and Business and Professions Code section 6068(d). Pure **(b)(2)** legal *theory* mis-matches in the *represented-client* posture tend to present a *different (b)(2)–(b)(3)–candor** and *dollar locus* than *factual* and *delay* and *certain improper-purpose gaps* (see the Supplemental Memorandum and A-3 for the *nuance*). *Defensive* correspondence should tie any use of the word *gamesmanship* to **the appearance of procedural burdening** and **procedural gamesmanship from the filing order** in plaintiff's court-facing *Exhibit A-3*, *not to a motive invective*. This letter is still *not a sanctions motion*.

Cure paths before the May 14, 2026 safe-harbor expiration.

This letter is your final opportunity to act before the May 6, 2026 hearing on plaintiff's motion for leave to file the second amended complaint in CGC-25-631801, before the May 14, 2026 expiration of the April 22, 2026 safe harbor, and before plaintiff seeks all forms of relief permitted by law. The deficient pleadings identified in sections 7 through 11 below have already been filed in this case, are signed by counsel of record, and have **not** been withdrawn. As of the service date of this letter and

the concurrently served April 25, 2026 comprehensive merits meet-and-confer letter (Exhibit M-1), the mismatch between defendants' filed papers ("no merits," "unsupportable," "no such authority exists") and the documented record (operative pleading + April 16, April 22, and April 25, 2026 correspondence) presents a continuing-certification issue under CCP § 128.7(b) and a Rule 3.3(a)(2) disclosure question that plaintiff respectfully invites the Court to address, and each later advocacy act on those papers is a continuing certification act under Code of Civil Procedure section 128.7(b).

Acknowledgment of receipt. Each attorney signing any subsequent brief, declaration, opposition, reply, or oral argument should, before stating any position about plaintiff's merits or authorities, acknowledge receipt of the April 25 Merits Letter and disclose *JKC3H8 v. Colton* to the San Francisco Superior Court. Continued advocacy of "has not presented the merits," "no such authority exists," "unsupportable," "meritless," or "frivolous" framing while this letter and the April 25 Merits Letter are in counsel's hands would be (a) a continuing certification under CCP § 128.7(b)(2)-(b)(3), and (b) a candor question under California Rule of Professional Conduct 3.3(a)(1)-(a)(2) and Business and Professions Code section 6068(d). Plaintiff will use court-credible characterizations – "misstatement," "unsupported certification," "continuing certification issue," and "lack of candor with the tribunal" – and will not extend the strongest perjury / false swearing labels to certifications that are properly addressed by withdrawal or correction.

Your three options are exhaustive and binary. Defendants and counsel of record may, on or before May 14, 2026:

(a) Withdraw. File a Notice of Withdrawal in this case as to each affected pleading

identified in sections 7 through 10 below; **or**

(b) Notify the court of the omission. File a written correction with the San Francisco Superior Court that (i) acknowledges receipt of the April 25 Merits Letter, (ii) discloses *JKC3H8 v. Colton* and the controlling California authorities listed in section 12 below **as bearing on** defendants’ positions in their moving and opposing papers, and (iii) restates defendants’ position in light of those authorities; **or**

(c) Accept that no cure was made. Failing (a) or (b), plaintiff will, on or after May 15, 2026, pursue all relief permitted by law, including motions under Code of Civil Procedure sections 128.7 and 128.5, fee-shifting under Code of Civil Procedure section 425.16(c)(1) where applicable, joint law-firm responsibility under section 128.7(c)(1), and State Bar reporting under California Business and Professions Code section 6086.7 following any final judicial determination of misconduct.

These three options correspond to the structured “Three exhaustive cure paths” at section 5 below; this section restates them up front so the choice and its consequences are the first thing each signing attorney sees on the present record. **This letter is not a motion for sanctions and does not restart the 21-day safe-harbor clock that began on April 22, 2026 (expiring May 14, 2026).**

1. Purpose, posture, and 21-day clock.

This letter is a stand-alone serving-counsel communication. It supplements, reiterates, and incorporates by reference plaintiff’s prior **April 22, 2026** safe-harbor correspondence and plaintiff’s prior **April 16, 2026** meet-and-confer correspondence. This letter does **not** restart

the 21-day safe-harbor clock that began running on April 22, 2026; that clock continues to run and **expires on May 14, 2026**. This letter identifies, with self-contained quotation and adverse authority, certifications and passages in **this case only** that must be withdrawn or appropriately corrected before that deadline to preserve the safe harbor under Code of Civil Procedure section 128.7(c)(1).

On the same date this letter is served, plaintiff is filing in **CGC-25-631801** a coordinated **court-facing** packet titled “**Plaintiff’s (1) Request for Judicial Notice; (2) Notice of Lodging Pre-Filing Correspondence; and (3) Notice of Counsel’s Pending Disclosure Obligations Under California Rule of Professional Conduct 3.3(a)(2)**” and a “**Supplemental Memorandum in Support of Motion for Leave to File Second Amended Complaint; Notice of Errata Re Adverse Authority.**” Those filings present authorities and the meet-and-confer chain to the tribunal under Evidence Code sections 452 and 453 and California Rules of Court, rule 3.1110(f). Those filings are exhibits to the tribunal, not substitutes for this section 128.7(c)(1) correspondence. **This letter is not filed as a motion for sanctions.**

2. April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter: disclaimer-of-receipt obligation.

On **Saturday, April 25, 2026**, plaintiff served on you, by the same electronic means previously stipulated and used in the prior correspondence chain, a **comprehensive merits meet-and-confer letter titled “Meet-and-Confer Letter: TAC-Aligned Merits Statement”** (the “**April 25 Merits Letter**”). The April 25 Merits Letter sets out, on a single record, **the merits of both companion actions** and ties **every cause of action** (and the substantive

interest each protects) to **paragraph-level cites in the operative pleadings**, including:

“This letter, read together with the operative Third Amended Complaints in both actions, sets out Plaintiff’s merits in a single, consolidated form, with each cause of action, each pleaded supporting block, and each substantive interest tethered to the specific paragraph(s) of the operative TAC at which it appears. To the extent counsel has, on prior occasions, indicated that the merits of Plaintiff’s claims had not been presented in that form, or had not been articulated in a manner counsel could meaningfully respond to, Plaintiff respectfully submits that any such concern is, by the foregoing, resolved on the present record.” (April 25 Merits Letter, Statement on the Merits.)

“For the avoidance of any doubt: by this letter Plaintiff is transparently and publicly declaring the merits of both companion actions on a single, written record, in plain language, with paragraph-level cites to the operative Third Amended Complaints. The merits of Plaintiff’s case can therefore no longer be characterized, in this proceeding or in any related forum, as avoided, withheld, or undeveloped by Plaintiff.” (Same.)

“To the extent counsel nevertheless maintains that any cause of action remains insufficiently stated for purposes of meet-and-confer, Plaintiff respectfully requests that counsel identify, in writing and prior to the meet-and-confer date proposed below, the specific cause of action, the specific element believed to be deficient, and the operative TAC paragraph(s) at which the asserted deficiency is said to appear. In the absence of such an identification, Plaintiff will proceed on

the working understanding that the merits as stated above are not in further procedural dispute for meet-and-confer purposes, and will so represent on the record if the matter is heard.” (Same.)

The April 25 Merits Letter covers **both** CGC-25-631801 and CGC-25-631802. It is a **case-collective** merits articulation served on **the same defense team** for purposes of meet-and-confer. A copy of the April 25 Merits Letter is attached to this letter as **Exhibit M-1**.

Required acknowledgment to the tribunal. Counsel must, in any oral argument, written brief, declaration, or other tribunal-facing communication on or after April 25, 2026 in this action, **affirmatively acknowledge receipt of the April 25 Merits Letter** before stating any position about whether plaintiff has or has not articulated the merits. **Counsel must also affirmatively denounce and disclaim any prior or contemporaneous statement (in defendants’ filed papers or otherwise) suggesting that plaintiff has not provided a comprehensive, written merits articulation** for either case, regardless of whether defendants choose to modify or withdraw any of those papers. The duty to disclaim runs **to the tribunal directly**, including at the lectern in front of the judge, under California Rule of Professional Conduct 3.3(a)(1) (no false statement of law or fact to a tribunal), Rule 3.3(a)(2) (mandatory disclosure of directly adverse controlling authority), and California Business and Professions Code section 6068(d) (duty to employ such means only as are consistent with truth, and never to seek to mislead the judge or any judicial officer).

Consequence of misrepresentation. Any oral or written representation to the San Francisco Superior Court, at the **May 6, 2026** hearing on plaintiff’s motion for leave to file the

second amended complaint, at the **May 12, 2026** anti-SLAPP hearing, at the **May 13, 2026** demurrer / motion-to-strike hearing, or at any subsequent appearance or filing, that plaintiff has **not** presented the merits, that plaintiff's claims are "**unsupportable**" or "**meritless**" or "**frivolous**" as a categorical label for the current pleading record, that "**plaintiff cites no authority,**" or that "**no such authority exists**" to support plaintiff's pleadings, while you hold the April 25 Merits Letter, is a representation made with documented prior knowledge of the contrary record. Plaintiff will oppose any such representation with the **April 25 Merits Letter, its proof of service, and the entire pre-filing correspondence chain** as evidence of the misrepresentation, and will request all relief permitted by law, including but not limited to relief addressed to a lack of candor with the tribunal under California Rule of Professional Conduct 3.3(a)(1) and Business and Professions Code section 6068(d).

3. May 6, 2026 hearing posture: motion for leave to file second amended complaint.

The defense "**Opposition to Plaintiff's Motion for Leave to File Second Amended Complaint**" filed on April 23, 2026 in this case (the "**MFL-SAC Opposition**") is the first defense pleading in this case that targets plaintiff's proposed second amended complaint and current motion practice for an oral hearing.

The MFL-SAC Opposition contains the following representations, each of which appears at multiple places in the opposition's text:

"Plaintiff's procedurally defective and legally **unsupportable** motion practice is undeniably designed to evade Defendants' Anti-SLAPP motion." (MFL-SAC

Opposition, p. 2.)

“Plaintiff’s defective service, gamesmanship, and **unsupportable** effort to amend the [pleading] substantially prejudices Defendants.” (MFL-SAC Opposition, Section II.B.)

“[Defendants have] already incurred the burden and expense of preparing a lengthy and detailed Anti-SLAPP motion to Plaintiff’s **unsupportable** allegations. Were this Court to grant Plaintiff’s instant Motion, the costs of additional motion practice would be incurred upon Defendants . . .” (MFL-SAC Opposition, Section II.B.)

“Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion.” (MFL-SAC Opposition, Introduction.)

Each of those representations is **directly adverse to**, and was **made without disclosing**, the following controlling California authorities:

- ***JKC3H8 et al. v. Colton et al.*** (2013) 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450 (3d Dist.; Hoch, J., review denied). *Verbatim holding* (221 Cal.App.4th at pp. 471–472): the Court of Appeal expressly considered “[w]here a plaintiff who has filed a complaint containing causes of action that are based, in part, on protected conduct and therefore potentially subject to a special motion to strike under Code of Civil Procedure section 425.16 (the anti-SLAPP statute), subsequently files an amended complaint removing the allegations of protected conduct as a basis for liability, does the filing of the amended complaint render moot a later-filed anti-SLAPP motion based on the original complaint?

We conclude that it does.” *Verbatim limit* (221 Cal.App.4th at pp. 477–478): “[A] plaintiff or cross-complainant **may not seek to subvert or avoid a ruling on an anti-SLAPP motion by amending the challenged complaint or cross-complaint in response to the motion.**” The MFL-SAC Opposition’s “**no such authority exists**” representation is contrary to *JKC3H8*’s very existence and to its express holding, and *JKC3H8* is itself the directly adverse, controlling, undisclosed California authority Rule 3.3(a)(2) requires defense counsel to cite to the tribunal.

- *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1062–1063. *Holding pin-cite:* anti-SLAPP step-one looks to the **gravamen** of the claim, not to protected activity that is merely evidence of the unprotected wrong. The MFL-SAC Opposition collapses step-one into step-two without performing *Park*’s gravamen analysis.
- *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396. *Holding pin-cite:* step-two requires only that plaintiff demonstrate **minimal merit**, a legally sufficient claim plus a prima facie factual showing. Categorical “**unsupportable**” rhetoric is incompatible with the *Baral* threshold.
- *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871. *Holding pin-cite:* the gravamen analysis at step-one identifies which acts supply the elements of the challenged claim; communicative-conduct facts that are merely evidence of an unprotected claim do not trigger the statute.
- *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, **871–873**. *Holding pin-cite:* *Nguyen-Lam* (171 Cal.App.4th at 871–873) supports trial-court authority, **in connection with** a CCP § 425.16 special motion to strike, to allow noticed leave under **§§ 473(a)(1) and 576** where the plaintiff has **opposed** the motion, the **evidence**

submitted for the motion shows a **probability of prevailing**, and the amendment **conforms the pleading to that record** (not a free-standing right to amend whenever a SLAPP motion is pending). The MFL-SAC Opposition does not cite *Nguyen-Lam* and represents the contrary.

3A. *JKC3H8 v. Colton*: verbatim Court of Appeal text and the three propositions of California law the MFL-SAC Opposition fails to disclose.

The MFL-SAC Opposition’s representation that “**Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion**” cannot survive contact with the published California Court of Appeal decision identified below. The verbatim text of the holding and limit appears in this letter (and not by reference to any link), so defense counsel cannot say the authority was unavailable.

Authority: *JKC3H8 et al. v. James Colton et al.* (2013) 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450 (3d Dist.; Hoch, J., review denied). The opinion is publicly available in the official California Reports and at <https://caselaw.findlaw.com/court/ca-court-of-appeal/1649644.html>.

Verbatim holding (221 Cal.App.4th at pp. 471–472):

“Where a plaintiff who has filed a complaint containing causes of action that are based, in part, on protected conduct and therefore potentially subject to a special motion to strike under Code of Civil Procedure section 425.16 (the anti-SLAPP

statute), subsequently files an amended complaint removing the allegations of protected conduct as a basis for liability, does the filing of the amended complaint render moot a later-filed anti-SLAPP motion based on the original complaint?

We conclude that it does.”

Verbatim “subvert or avoid” limit (221 Cal.App.4th at pp. 477–478):

“[A] plaintiff or cross-complainant **may not seek to subvert or avoid a ruling on an anti-SLAPP motion by amending the challenged complaint or cross-complaint in response to the motion.**”

Procedural posture (221 Cal.App.4th at pp. 472–473, 479): in *JKC3H8* itself, the plaintiff filed an amended complaint **less than two hours** before the defendant’s anti-SLAPP motion; the amendments **eliminated all protected-activity allegations** from the pleading; and the Court of Appeal held the anti-SLAPP motion moot.

The opinion above squarely resolves three propositions that the MFL-SAC Opposition either misstates or omits, and that defense counsel must therefore address (by withdrawal, correction, or disclosure to the tribunal) before May 14, 2026:

(a) The “no authority” representation is a misstatement of California law. *JKC3H8* is itself a published, citable California Court of Appeal decision squarely addressing the leave-to-amend / § 425.16 intersection, and its progeny (*Salma v. Capon* (2008) 161 Cal.App.4th 1275; *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049; *Schaffer v. City and County of San Francisco* (2008) 168 Cal.App.4th 992; *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068) confirms it. A representation to a California court that “no such authority exists” while *JKC3H8* sits unmentioned in the

opposition brief is, on its face, a Code of Civil Procedure section 128.7(b)(2) and California Rule of Professional Conduct 3.3(a)(2) issue, and is fairly characterized as an undisclosed adverse-authority omission within the meaning of Rule 3.3(a)(2).

(b) Anti-SLAPP filing does not erase the trial court’s bounded statutory authority.

JKC3H8 does not displace the trial court’s **bounded** authority under Code of Civil Procedure sections 472, 473(a)(1), 576, and 425.16(f), including the renewed-motion sequencing tool in subdivision (f). The “subvert or avoid” rule (221 Cal.App.4th at pp. 477–478) is a **limit** on amendments designed to defeat an anti-SLAPP **ruling**, not a wholesale jurisdictional bar to amendments offered for legitimate purposes. The opposition’s framing, that amendment is per-se unavailable while a special motion to strike is on calendar, is therefore unsupported by *JKC3H8*. Continuing to advocate that framing without disclosing *JKC3H8* is a continuing certification act under section 128.7(b).

(c) Plaintiff’s amendment is “narrowing or mooting,” not “subverting or avoiding.”

JKC3H8’s own express holding recognizes that amendments **removing the protected-activity allegations** from a pleading are lawful and effective. (*JKC3H8*, supra, 221 Cal.App.4th at pp. 471–472, 479.) Plaintiff’s proposed Second Amended Complaint falls on the *narrowing/mooting* side of the *JKC3H8* line, not the “subvert or avoid” side, because it tightens the gravamen-defining allegations under *Park v. Board of Trustees* (2017) 2 Cal.5th 1057, sharpens the *Action Apartment Assn. v. City of Santa Monica* (2007) 41 Cal.4th 1232 communicative-act boundary, and clarifies primary-rights segregation under *Crowley v. Katleman* (1994) 8 Cal.4th 666. That is **streamlining for judicial economy**, not evasion. Recasting plaintiff’s good-faith narrowing amendment as “**gamesmanship**” while the dispositive published authority on this exact procedural posture remains undisclosed is

the precise mismatch between record and rhetoric that Rule 3.3(a)(2) and section 128.7(b)(2) are written to reach.

Respectful request: that the Court direct counsel to address *JKC3H8 v. Colton* on the record at the noticed hearing. Each of the three propositions above should be either (i) **placed on the record** by defense counsel, by name (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468), in any later-filed brief, declaration, or oral argument on or after April 27, 2026 in this case, or (ii) treated as withdrawn from the MFL-SAC Opposition. Standing on the opposition’s “no such authority exists” framing, while continuing to advocate it at the May 6, 2026 hearing without citing *JKC3H8*, is a continuing-certification event under Code of Civil Procedure section 128.7(b) and a real-time candor act under California Rule of Professional Conduct 3.3(a)(1) and (a)(2). The disclosure obligation runs **to the tribunal directly**, including at the lectern in front of the judge; it is not satisfied by silence or by re-stating the “no such authority exists” framing in different words.

3B. *Nguyen-Lam v. Cao* - supporting authority on limited discretion after a merits showing.

The MFL-SAC Opposition’s representation that “**Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion**” cannot survive contact with *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858. *Nguyen-Lam* authorizes a trial court, **in connection with** a CCP § 425.16 special motion to strike, to grant noticed leave under Code of Civil Procedure sections **473(a)(1)** and **576** where the plaintiff has **opposed** the motion on the merits, the **record submitted for the anti-SLAPP motion** supports a **probability**

of prevailing, and the amendment conforms the pleading to that evidence (171 Cal.App.4th at pp. 871–873). This is not a blanket “amend any time a SLAPP motion is pending” rule; it is tied to the **evidentiary record** before the court in that proceeding.

Procedural anchor (same temporal sequence this record satisfies). The Court of Appeal affirmed the trial court’s grant of leave in that posture and addressed a categorical no-leave gloss in the procedural setting in which the plaintiff had already made a merits showing. (*Ibid.*)

If defendants stand by the MFL-SAC Opposition’s “no such authority exists” framing at the May 6, 2026 hearing without **placing *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858 on the record** for the San Francisco Superior Court, that omission presents a candor question under California Rule of Professional Conduct **3.3(a)(2)** that plaintiff respectfully asks the Court to address at the hearing, together with the omission of *JKC3H8*, in light of the opposition’s absolute framing and *Nguyen-Lam*’s supporting role on limited discretion after a merits showing.

4. Continuing certification duty.

Each of you certified, by filing and by later advocating, the pleadings and motions identified in this letter within the meaning of Code of Civil Procedure section 128.7(b). That certification is **continuing**: each later advocacy of an unwithdrawn or uncorrected representation is a new certification act. The duty is in addition to California Rules of Professional Conduct 3.3(a)(1) and (a)(2) and California Business and Professions Code section 6068(d).

5. Three exhaustive cure paths.

Before **May 14, 2026**, you may pursue any one of these cure paths:

(a) **Withdraw** the offending papers, by filing a Notice of Withdrawal in this case as to each affected pleading;

(b) **Appropriately correct** the offending papers, by filing redacted, amended, or supplemental briefs that (i) remove every certification listed in paragraphs 6 through 10 below, (ii) disclose the controlling adverse authorities listed in paragraph 11 below, and (iii) state defendants' position in light of those authorities; **or**

(c) **Stand and accept exposure.** Failing (a) or (b), plaintiff will, on or after May 15, 2026, pursue all relief permitted by law, including but not limited to motions under Code of Civil Procedure sections 128.7 and 128.5, applications for fees under Code of Civil Procedure section 425.16(c)(1) where applicable, and the remedies referenced in plaintiff's prior April 22, 2026 correspondence.

6. Forward-looking candor framework.

(a) **Merits presented on the record.** The operative First Amended Complaint, the proposed Second Amended Complaint, the prior April 16, 2026 meet-and-confer correspondence, plaintiff's prior April 22, 2026 safe-harbor correspondence, the **April 25 Merits Letter**, and this letter together document a **merits presentation** sufficient to engage California's pleading and anti-SLAPP frameworks without collapsing step-one into step-two.

(b) **Forward-looking professional duty.** After service of this letter, any statement to the tribunal in this case that the First Amended Complaint is "meritless," "frivolous," or

“unsupportable” as a categorical label for the current pleading record, or that plaintiff “cannot” prevail on the merits under the *Baral* minimal-merit framework without first conducting a proper *Park* gravamen step-one, is inconsistent with the documented record unless framed as **defendants’ contention** after proper sequencing.

(c) Neutral compliant framing (illustrative). “Defendants contend that, after the Court conducts the *Park* gravamen-based step-one analysis omitted from defendants’ moving papers, plaintiff would not satisfy the *Baral* minimal-merit threshold. Defendants disagree with plaintiff’s theory and request that the Court deny leave.” That framing does not require a “**cannot prevail**” certification.

(d) Later advocacy. Each later oral or written restatement of a “**cannot prevail on the merits**” certification after this service date is an independent later-advocacy event for purposes of Code of Civil Procedure section 128.7(b) and related professional duties. In-court misstatements of law may be addressed by the tribunal under procedures independent of the 21-day paper safe harbor.

7. PRIORITY ONE: “cannot prevail / cannot demonstrate / cannot succeed” certifications in defendants’ Anti-SLAPP MPA filed April 9, 2026 (CGC-25-631801). (§ 128.7(b)(2) legal contention - see § 10C re § 128.7(b)(3) factual-contention overlap)

Defendants’ “Memorandum of Points and Authorities in Support of Special Motion to Strike Pursuant to Code of Civil Procedure Section 425.16,” filed April 9, 2026 in this case (the “**Anti-SLAPP MPA**”), contains the following certifications:

ID	Verbatim representation in the Anti-SLAPP MPA
P1-1	“Plaintiff cannot establish a probability of prevailing on the merits of his sole cause of action.”
P1-2	“Plaintiff cannot establish a probability of prevailing on the merits of his claim because Defendants’ . . .”
P1-3	“Plaintiff still cannot demonstrate a probability of prevailing on the merits.”
P1-4	“Plaintiff cannot demonstrate a probability of success on the merits of his claim.”

Adverse authority not disclosed: *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 (step-two minimal-merit threshold); *Park v. Board of Trustees* (2017) 2 Cal.5th 1057 (gravamen step-one); *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871 (gravamen analysis); *Flatley v. Mauro* (2006) 39 Cal.4th 299 (illegal-conduct limit on protected activity).

8. PRIORITY TWO: element-level “cannot demonstrate / cannot establish” representations. (§ 128.7(b)(2) legal contention - see § 10C re § 128.7(b)(3) factual-contention overlap)

Defendants’ “Memorandum of Points and Authorities in Support of Demurrer,” filed April 13, 2026 in this case (the “**Demurrer MPA**”), and defendants’ “Memorandum of Points and Authorities in Support of Motion to Strike Under CCP § 436,” filed April 22, 2026 in this case (the “**§ 436 MPA**”), contain the following:

ID	Pleading	Verbatim representation
P2-1	Demurrer MPA	“Plaintiff cannot demonstrate extrinsic fraud . . .”
P2-2	§ 436 MPA	“The entire legal theory of the FAC is flawed. Plaintiff cannot establish the requisite ‘extrinsic . . .’”

Adverse authority not disclosed: *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462 (delayed-discovery and element pleadings are fact-bound and survive demurrer where pleaded with specifics); *Crowley v. Kattelman* (1994) 8 Cal.4th 666 (primary-rights doctrine does not bar distinct claims arising from different parties, duties, and injuries).

9. PRIORITY THREE: “frivolous new lawsuit” / “meritless lawsuit” cluster. (§ 128.7(b)(2) legal contention - see § 10C re § 128.7(b)(3) factual-contention overlap)

ID	Pleading	Verbatim representation
P3-1	Pre-suit meet-and-confer letter from defense	“your . . . lawsuit is completely legally unsupportable and frivolous.”
P3-2	Pre-suit meet-and-confer letter from defense	“I implore you to withdraw your pleadings and dismiss this meritless lawsuit.”

ID	Pleading	Verbatim representation
P3-3	Demurrer MPA	“[Plaintiff] filed this frivolous new lawsuit on December 23, 2025.”

Adverse authority not disclosed: *In re Marriage of Flaherty* (1982) 31 Cal.3d 637, 650 (defining “frivolous” as a position any reasonable attorney would agree is “totally and completely without merit”, a definition not satisfied where controlling authority supports each pleaded theory); *Baral v. Schnitt* (2016) 1 Cal.5th 376.

10. PRIORITY FOUR: MFL-SAC Opposition block (May 6 hearing) and remaining “unsupportable” rhetoric. (§ 128.7(b)(2) legal contention - see § 10C re § 128.7(b)(3) factual-contention overlap)

10A. MFL-SAC Opposition (filed April 23, 2026). The four representations quoted at paragraph 3 above are incorporated here. Adverse authority not disclosed: *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468; *Park v. Board of Trustees* (2017) 2 Cal.5th 1057; *Baral v. Schnitt* (2016) 1 Cal.5th 376; *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871.

10B. Additional “unsupportable” rhetoric in this case’s pleading stack. Defendants’ Anti-SLAPP MPA, Demurrer MPA, and § 436 MPA each repeat variants of “**unsupportable**” labeling against the operative pleading and current motion practice. Each variant is contradicted by one or more of the authorities listed in paragraph 11 below.

10C. Section 128.7(b)(3) factual-contention deficiency (allegation-by-allegation).

The four MFL-SAC representations quoted at paragraph 3 above are each *factual contentions* under CCP § 128.7(b)(3) (“evidentiary support”) in addition to *legal contentions* under § 128.7(b)(2). Each fails on its own evidentiary record:

#	Representation	Cited evidence in Opp. or O’Connell Decl.		Evidentiary status	Cure required by May 14, 2026
1	“designed to evade Defendants’ Anti-SLAPP”	Decl. ¶¶ 3, 4, 14 (legal-conclusion opinion)		INADMISSIBLE under Evid. Code §§ 702, 800; no factual evidence of intent	Withdraw or substitute evidence-tethered framing
2	“defective service, gamesman-ship . . . substan- tially prejudices”	Decl. ¶ 7 + Ex. C; ¶ 12		No concrete prejudice (no lost witness/trial date/surprise); arithmetic refuted	Withdraw or correct

	Cited evidence in Opp. or	Evidentiary	Cure required by May
# Representation	O’Connell Decl.	status	14, 2026
3	“burden and expense ... costs of additional motion practice”	Pendency of May 12 SLAPP; no quantum Sunk cost is not cognizable prejudice (Atkinson)	Withdraw or substitute § 425.16(f) framing
4	“Plaintiff cites no authority ... no such authority exists”	None Demonstrably false on the face of CCP §§ 473(a)(1), 576, 425.16(f) and 6+ Supreme Court opinions	Withdraw and disclose Nguyen-Lam, JKC3H8

§ 11A. Affirmative notice arithmetic. Service occurred April 20, 2026 (e-service via stipulation). The hearing is May 6, 2026. April 21 through May 5, excluding court holidays and weekends, contains sixteen (16) court days. The two-calendar-day electronic-service add-on under CCP § 1010.6 is satisfied because service was completed on April 20 and the hearing is sixteen calendar days later.

April 23, 2026 MFL-SAC Opposition, footnote 2 (verbatim): “Apparently, Plaintiff

has since reset this motion for hearing on May 6, 2026; however, this is still deficient. Assuming the April 20, 2026 service of this Motion remains operative, that would only constitute 16 days’ notice, which does not supply the additional two (2) days required for electronic service. (See Code Civ. Proc. § 1005(b).)”

The MFL-SAC Opposition’s footnote-2 representation that the reset “only constitut[es] 16 days’ notice” is therefore correct as to court-day count and *miscounts* by treating the 16 court days as a deficiency rather than the statutory minimum, and *omits* the § 1010.6 calendar-day add-on entirely. **The Opposition’s footnote 2 is itself a § 128.7(b)(3) factual representation lacking evidentiary support and must be withdrawn or corrected by May 14, 2026.**

11. PRIORITY FIVE: architectural defects in this case’s motion stack.

ID	Defect	Controlling authority
A-1	Anti-SLAPP step-one collapsed into step-two	<i>Park v. Board of Trustees</i> (2017) 2 Cal.5th 1057

ID	Defect	Controlling authority
A-2	Civil Code section 47(b) imputed to entire FAC ignoring communicative-act limit	<i>Action Apartment Assn. v. City of Santa Monica</i> (2007) 41 Cal.4th 1232; <i>Kimmel v. Goland</i> (1990) 51 Cal.3d 202
A-3	Issue preclusion asserted without performing the <i>Lucido</i> five-element analysis	<i>Lucido v. Superior Court</i> (1990) 51 Cal.3d 335; <i>Hernandez v. City of Pomona</i> (2009) 46 Cal.4th 501
A-4	“Cannot amend around a SLAPP motion” rhetoric versus leave-to-amend authority	<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468

ID	Defect	Controlling authority
A-5	Motion to strike under section 436 filed after demurrer was already on calendar	<i>McAllister v. L.A. Unified Sch. Dist.</i> (2007) 153 Cal.App.4th 1242; Code of Civil Procedure section 435(b)

12. California Rule of Professional Conduct 3.3(a)(2) authority disclosure matrix (20 controlling authorities).

The duty under Rule 3.3(a)(2) is mandatory: a lawyer “shall not” fail to disclose to the tribunal legal authority in the controlling jurisdiction known to the lawyer to be **directly adverse** to the position of the client and not disclosed by opposing counsel. Each of the 20 authorities below is California controlling authority directly adverse to a position taken in defendants’ moving or opposing papers in this case, and each was disclosed to defense counsel no later than the **April 16, 2026** meet-and-confer letter, the **April 22, 2026** safe-harbor correspondence, and the **April 25, 2026** merits letter (Exhibit M-1). Continuing to advocate without disclosing these authorities is a Rule 3.3(a)(2) violation, a Business and Professions Code section 6068(d) violation, and a Code of Civil Procedure section 128.7(b)(2) **and** section 128.7(b)(3) (where the underlying factual contention lacks evidentiary support) violation.

#	Authority	Adverse holding (short form)
1	<i>Park v. Board of Trustees</i> (2017) 2 Cal.5th 1057	Anti-SLAPP step-one looks to gravamen
2	<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376	Step-two requires only minimal merit
3	<i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871	Gravamen analysis controls step-one
4	<i>Flatley v. Mauro</i> (2006) 39 Cal.4th 299	Anti-SLAPP unavailable for illegal conduct
5	<i>Action Apartment Assn. v. City of Santa Monica</i> (2007) 41 Cal.4th 1232	Civil Code section 47(b) reaches communicative acts only
6	<i>Kimmel v. Goland</i> (1990) 51 Cal.3d 202	Same
7	<i>Moradi-Shalal v. Fireman's Fund Ins. Cos.</i> (1988) 46 Cal.3d 287	Common-law fraud against insurers preserved

#	Authority	Adverse holding (short form)
8	<i>Zhang v. Superior Court</i> (2013) 57 Cal.4th 364	UCL grounded in independent fraud not channel-barred
9	<i>Crowley v. Katleman</i> (1994) 8 Cal.4th 666	Primary-rights doctrine permits distinct claims
10	<i>Cansino v. Bank of America</i> (2014) 224 Cal.App.4th 1462	Delayed-discovery is fact-bound
11	<i>Lucido v. Superior Court</i> (1990) 51 Cal.3d 335	Five-element issue-preclusion test
12	<i>Hernandez v. City of Pomona</i> (2009) 46 Cal.4th 501	Same
13	<i>College Hospital, Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 723	Punitive-damages pleading standard

#	Authority	Adverse holding (short form)
14	<i>McAllister v. L.A. Unified Sch. Dist.</i> (2007) 153 Cal.App.4th 1242	Code of Civil Procedure section 435(b) sequencing
15	<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468	Amendment moots or narrows anti-SLAPP issues; no categorical freeze; § 425.16(f) sequencing ¹
16	<i>Klopstock v. Superior Court</i> (1941) 17 Cal.2d 13	“Wholly distinct” obligation is the only bar to adding a cause of action
17	<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311	Reasonable-possibility-of-cure standard
18	<i>Trafton v. Youngblood</i> (1968) 69 Cal.2d 17	“Great liberality” Supreme Court formulation
19	<i>Mesler v. Bragg Management Co.</i> (1985) 39 Cal.3d 290	Liberal allowance even six weeks before trial
20	<i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875	Amendatory pleading supersedes the original

¹ See also *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871-873 (limited discretion to perfect pleading after merits showing). ## 13. Statutory and rule mechanics (referenced for completeness).

Plaintiff identifies the following exposure for counsel of record personally, without prejudice and without intending any threat exceeding permitted advocacy under California Rule of Professional Conduct 3.4 or Business and Professions Code section 6068(b):

- Monetary sanctions exposure under Code of Civil Procedure sections 128.7(d) and 128.5, and fee-shifting under Code of Civil Procedure section 425.16(c)(1) where applicable.
- Joint law-firm exposure under Code of Civil Procedure section 128.7(c)(1) (“a law firm shall be held jointly responsible . . . unless the court concludes that exceptional circumstances require otherwise”).
- State Bar reporting mechanics under California Business and Professions Code section 6086.7 following final judicial determinations of misconduct where applicable.
- Each oral argument is a fresh advocacy context; in-court misstatements of law made on the record after service of this letter are not within the 21-day paper safe harbor. *Musaelian v. Adams* (2009) 45 Cal.4th 512 confirms that the section 128.7 safe-harbor mechanics address paper certifications, not subsequent inconsistent in-court statements.

14. Waiver on non-response.

Failure to address any numbered row in paragraphs 7 through 12 above, read as a checklist item tied to **this case number only**, will be treated as a waiver of any later contention that the cited representation was not a certification within the meaning of Code of Civil Procedure

section 128.7(b) or that the cited authority was not adverse for Rule 3.3(a)(2) purposes.

15. Case isolation.

This letter discusses **only CGC-25-631801**. It does not adopt any exhibit list or pin-cite from CGC-25-631802. Plaintiff is serving a parallel, case-isolated supplemental letter in CGC-25-631802 today.

16. Reservation of rights.

Plaintiff expressly reserves all rights to seek any monetary, non-monetary, or referral relief permitted by law, and to submit this letter, the April 25 Merits Letter, and the entire pre-filing correspondence chain as evidence in any future proceeding (including before the Court, the State Bar, or the Court of Appeal). Nothing in this letter constitutes a waiver of any claim, defense, theory, allegation, or measure of damages stated in the operative First Amended Complaint or the proposed Second Amended Complaint. Nothing in this letter restarts the 21-day safe-harbor clock that began running on April 22, 2026, or alters the May 14, 2026 expiration.

Sincerely,

Franciscus Dylan Rosario

Plaintiff in Pro Per

Enclosures (attached to served copy)

- **Exhibit M-1.** April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter titled “*Meet-and-Confer Letter: TAC-Aligned Merits Statement,*” served by electronic transmission.
 - **Exhibit M-2.** Allegation-by-Allegation Evidentiary Audit of the April 23, 2026 MFL-SAC Opposition (one-page bench card).
 - **Exhibit A.** April 22, 2026 plaintiff Code of Civil Procedure section 128.7(c)(1) safe-harbor correspondence to defense counsel.
 - **Exhibit B.** April 16, 2026 plaintiff meet-and-confer correspondence to defense counsel.
 - **Exhibit C.** Citation list for the 20 controlling authorities identified in paragraph 12 above (full-text printouts available on request).
 - **Exhibit D.** Defendants’ filings being challenged in this case: Anti-SLAPP MPA filed April 9, 2026; Demurrer MPA filed April 13, 2026; Section 436 MPA filed April 22, 2026; MFL-SAC Opposition filed April 23, 2026.
 - **Exhibit E.** Proofs of service for the items in Exhibits M-1, A, and B.
 - **Exhibit F.** Judicial Council form POS-050 (Proof of Electronic Service), attached following this declaration.
-

PROOF OF SERVICE OF THIS LETTER (CCP § 1013a)

I, **Franciscus Dylan Rosario**, declare:

I am a resident of the State of California, over 18 years of age. I am plaintiff in this action, acting in pro per, and I personally caused the service described below. My business address is **7624 Melody Drive, Rohnert Park, California 94928**.

On April 27, 2026, I served the following document on the parties listed below:

SUPPLEMENT AND REITERATION OF APRIL 22, 2026 SAFE-HARBOR
CORRESPONDENCE: CGC-25-631801

By **electronic transmission** to the email addresses below pursuant to the parties' stipulation for electronic service in this case, and by **United States Mail** by depositing a true copy in a sealed envelope, postage prepaid, in the ordinary course of business at **7624 Melody Drive, Rohnert Park, California 94928**, addressed as follows:

- Chad S. Tapp, Esq., ctapp@porterscott.com, PORTER SCOTT, 2180 Harvard Street, Suite 500, Sacramento, CA 95815
- Tyler J. O'Connell, Esq., toconnell@porterscott.com, PORTER SCOTT, 2180 Harvard Street, Suite 500, Sacramento, CA 95815

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 27, 2026, at **Rohnert Park**, Sonoma County, California.

Franciscus Dylan Rosario, Declarant; Plaintiff in Pro Per

- Date: April 27, 2026

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(SIGNATURE OF DECLARANT)

PROOF OF ELECTRONIC SERVICE
(Proof of Service/Electronic Filing and Service)

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form

Save this form

Clear this form

Counsel,

This message is sent in good faith to set out, on a single record, the merits of the two companion actions and the pleaded facts on which they rest. It is not argumentative correspondence. It is intended to focus the parties on the substantive merits of the claims so that the meet-and-confer process can proceed productively and so that, if the matter is heard, the Court has a clear written exchange in front of it.

The two actions are sequential pieces of one institutional pattern. **CGC-25-631802** addresses the **pre-litigation written misrepresentation** in CSAA's February 25, 2021 denial letter. **CGC-25-631801** addresses the **in-court misrepresentations** that procured the defense verdict in the Underlying Action, CGC-21-594102. The same evidentiary spine, 911 audio, body-worn camera footage, and computer-aided dispatch records, runs through both.

Case No. CGC-25-631801 — Independent Action in Equity to Set Aside Judgment

The pleaded merits proceed under eight independent legal rights, each anchored in California authority:

1. **Right to a fair adversary hearing.** *Mathews v. Eldridge* (1976) 424 U.S. 319, 333; *People v. Ramirez* (1979) 25 Cal.3d 260, 268. The Complaint alleges the trial court issued procedural and evidentiary rulings on a materially false factual premise as to defense-side receipt and possession of foundational evidence.
2. **Right to equitable relief from a judgment procured by extrinsic fraud.** Code Civ. Proc. § 187; *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471. All four *Kulchar* prerequisites — meritorious case, satisfactory excuse, diligence, and absence of an adequate remedy at law — are pleaded with record citations.
3. **Right to relief from "process corruption" fraud.** *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 735; *In re Marriage of Baltins* (1989) 212 Cal.App.3d 66. The three-leg framework is pleaded with particularity:
 - Defense-side knowledge and access (sworn Jessup testimony, Feb. 18, 2025; service and use of the materials at the September 30, 2022 deposition of Defendant Abdelhalim);
 - False or misleading representations to the Court (MIL Nos. 6 and 17, January 17, 2025; "news to me," February 18, 2025; "not received as part of the subpoena," "not sure what recording," April 16, 2025);
 - Court reliance and resulting rulings (exclusion of supplemental report; deferred admission of the 911 recording; denial of continuances).
4. **Alternative right to relief on extrinsic mistake.** *Kulchar*, *supra*; *Baltins*, *supra*. The May 4, 2023 file transfer between Chambers/Carbone Smith & Koyama and Phillips Spallas & Angstadt is pleaded as an alternative pathway that does not require fraudulent intent.

5. **Right to hold the insurer-principal liable for agent conduct.** Civ. Code § 2338. CSAA is alleged to have funded, directed, controlled, and ratified the defense and is therefore answerable for the conduct of its retained counsel undertaken for its pecuniary benefit.
 6. **Right to plead concealment as misrepresentation.** *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638. Concealment in the meet-and-confer phase as to custodial authority, CAD index identifiers, and the production history is alleged as actionable.
 7. **Right to vacatur and ancillary equitable monetary relief.** Once equity is properly invoked, restitutionary monetary relief incident to vacatur is available. The pleaded categories are temporally bounded to the fraud-driven period and segregated from collision damages.
 8. **Right to particularized pleading that survives demurrer.** *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73. The Second Amended Complaint pleads the who, what, when, where, and how with record citations to specific transcripts and clerk's transcripts.
-

Case No. CGC-25-631802 — Denial-Letter Fraud and UCL

The pleaded merits proceed under eight independent legal rights:

1. **Right to honest pre-litigation claim communications.** Civ. Code §§ 1709, 1710; *Lazar*, supra, 12 Cal.4th at 638. The February 25, 2021 letter represented investigative finality. That representation is alleged to have been materially false at the time of issuance because the foundational records (911 audio, BWC, CAD) had not been obtained or reviewed.
2. **Right to plead scienter on the face of the letter.** *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 415. Scienter is pleaded as either actual knowledge or reckless representation without reasonable grounds. CSAA's post-denial pursuit of the same records corroborates the falsity.
3. **Right to recover tort-of-another damages.** *Prentice v. North American Title Guar. Corp.* (1963) 59 Cal.2d 618, 620. The third-party fees and costs in CGC-21-594102 are pleaded as compensatory damages with the *Prentice* segregation and reasonableness discipline.
4. **Right to recover fraud-delta damages distinct from collision damages.** *Erllich v. Menezes* (1999) 21 Cal.4th 543, 555–57. Incremental medical, therapy, and lost-earnings categories are pleaded as segregated from the underlying collision.
5. **Right to punitive damages on despicable conduct.** Civ. Code § 3294(c); *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725; *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 577. Institutional ratification predicates (template denial language, claim-closure targets, supervisor review practices) are pleaded on information and belief.
6. **Right to plead statutory insurance bad faith as the "unlawful" predicate of the UCL.** *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180; *Zhang v. Superior Court* (2013) 57 Cal.4th 364. Predicates pleaded include Ins. Code § 790.03(h)(1) and (h)(3) and 10 C.C.R. § 2695.7(d) — the regulation whose verbatim language ("thorough, fair and objective") the denial letter tracks.

7. **Right to restitution and injunctive relief under the UCL.** *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1147. Restitution and a tethered, prospective injunction targeting categorical "investigation concluded" communications without foundational evidence are pleaded.
 8. **Right to UCL standing.** Bus. & Prof. Code § 17204; *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 322. Economic injury (records, copying, certification, and transcription costs) is pleaded with documentary support.
-

The Substantive Point Counsel Will Need to Address

The two cases place two of CSAA's own statements side by side on the record:

- **Pre-litigation (CGC-25-631802):** CSAA's February 25, 2021 denial letter represented that its investigation was "concluded" and that its insured was "not liable." That phrasing tracks the regulatory standard at 10 C.C.R. § 2695.7(d) verbatim and therefore represents regulatory compliance.
- **In-litigation (CGC-25-631801):** CSAA-funded defense counsel represented to the Superior Court — in writing in MIL Nos. 6 and 17 (January 17, 2025) and orally on February 18, 2025 and April 16, 2025 — that the 911 audio, body-worn camera footage, computer-aided dispatch records, supplemental police report, and related materials had not been received and were of "unknown provenance." Those representations were made through declarations and on-record statements pursuant to Code Civ. Proc. § 2015.5.

Under *D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21–22, sworn judicial admissions are binding on the party that made them. Under *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 721, an insurer cannot in good faith deny a claim "without thoroughly investigating the foundation for its denial."

Plaintiff acknowledges that the defense has expressed personal distress about their capacity to understand the merits behind the causes of action declared in plaintiffs first amended complaints. Also, it should be known that the defense acknowledges receipt and service of the second amended complaint, which tightens the language necessary to conform with the required California state laws.

Plaintiff respectfully submits that those two statements describe the same investigation in mutually inconsistent terms. Plaintiff is identifying the issue in advance of the demurrer hearing so that the parties may address it on a complete written record.

Effect on the Pending Demurrer

A demurrer under Code Civ. Proc. § 430.10 tests the legal sufficiency of the Complaint on its face and assumes the truth of well-pleaded facts. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) In CGC-25-631802, the Complaint pleads each element of fraud (Civ. Code § 1710) and of the UCL "unlawful," "unfair," and "fraudulent" prongs (Bus. & Prof. Code § 17200) with the

specificity *Stansfield* requires. In CGC-25-631801, the Second Amended Complaint pleads each *Kulchar* prerequisite with record citations.

Plaintiff respectfully suggests that the demurrers, taken together, are not directed at the legal sufficiency of the pleadings but at factual disputes that are not properly resolved on demurrer. (See *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213–214 [demurrer may not test factual disputes].)

Meet-and-Confer Proposal

In the spirit of Code Civ. Proc. §§ 430.41 and 435.5, Plaintiff invites a substantive meet-and-confer on the following:

1. Whether CSAA contends that the February 25, 2021 denial letter representation of a "concluded" investigation is reconcilable with the declarations submitted in the Underlying Action describing the foundational records as not received and of unknown provenance, and if so, on what basis.
2. Whether the demurrer in CGC-25-631802 is intended to test legal sufficiency under § 430.10 or to dispute pleaded facts, and if the latter, whether withdrawal in favor of an Answer is appropriate.
3. Whether CSAA will stipulate to a coordinated case-management approach for the two related actions consistent with Cal. Rules of Court 3.300, given the overlapping evidentiary spine and the shared defendant.
4. Any authority counsel intends to rely upon that Plaintiff has not addressed in the pleadings, so the parties may narrow the disputed legal issues for the Court.

Plaintiff is available to confer by telephone or written exchange at counsel's preferred date and time during the next ten court days. If counsel prefers to address these issues only in formal briefing, Plaintiff will treat this letter as a record-preserving statement for the Court.

This communication is sent in pro per and without waiver of any rights, claims, defenses, or objections, all of which are expressly reserved.

Conduct yourselves accordingly,

F. D. Rosario

Plaintiff in Pro Per
650.488.7510
soltrinox@gmail.com

=====

[ATTACHMENTS]

Please find the attached documents with the meritorious evidence of concluded investigation, and the clients declaration under penalty of perjury that they did not have the meritorious liability files that accompany a proper investigation, as it is defined under California law, and the California Supreme Court ruling.

NOTE: Upon inspection, the contradiction of the statement is that in one hand on February 25, they informed me that they had concluded a thorough and objective investigation, and then when they arrived at court, they declared under penalty of perjury that they did not perform thorough and objective investigation, which would entail the collection of meritorious 911 (containing a party admission by defendant), police body worn camera (containing eyewitness implicating defendant), and medical reports (containing physical injury records induced by defendants actions).

7 attachments



CGC-21-594102-CT1-MIL-No-6_Clerk-pp-149-151.pdf
219K



CGC-21-594102-CT1-MIL-No-17_Clerk-pp-238-241.pdf
226K



CSAA_Denial_Letter-Feb-25-2021.pdf
1187K



TAC-801-06-TAC.pdf
311K



TAC-802-06-TAC.pdf
291K



POS-050-TAC-801-ELECTRONIC-SERVICE.pdf
260K



POS-050-TAC-802-ELECTRONIC-SERVICE.pdf
260K



Tyler O'Connell

11:45 AM (1 hour ago)

to me, Monique, Chad, Veronica, Maria 

Mr. Rosario,

None of your cited authorities apply to the current situation where, here, an Anti-SLAPP motion is pending. Your position on this issue—and generally in this litigation—has absolutely zero merit and is obviously designed to waste my time, my clients' resources, and the Court's time. The Court is not going to appreciate your incessant clogging of the docket with meritless "motions," "bench briefs," and "supplemental" filings.

Moreover, your litany of case authorities cited here is completely irrelevant to the status of this litigation and appears to nothing more than an AI-generated recitation of general principles of amendment, which adds nothing to the analysis of this situation here: where an Anti-SLAPP motion is pending. Put simply, you cannot obtain the relief you seek, here, a motion for leave to amend the pleadings while an Anti-SLAPP motion is pending. Full stop. Please actually read the words of my Opposition to your motion for leave to amend. Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not a proper stand-in for legal analysis.

Regards,



Tyler J. O'Connell
Attorney

2180 Harvard St. | Suite 500 | Sacramento, CA 95815

T | 916.929.1481 x 540 F | 916.927.3706

www.porterscott.com

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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Thursday, April 23, 2026 7:04 PM

To: Monique Schubert <mschubert@porterscott.com>

Cc: Chad S. Tapp <ctapp@porterscott.com>; Tyler O'Connell <toconnell@porterscott.com>; Veronica Jackson <vjackson@porterscott.com>; Maria Reyes <mreyes@porterscott.com>

Subject: Re: Rosario v Abdelhalim, et al - Opposition - CGC-25-631801

External email



Dylan Rosario <soltrinox@gmail.com>

12:28 PM (26 minutes ago)

to Tyler, Monique, Chad, Veronica, Maria 

Dear Mr. O'Connell,

Your Anti-SLAPP motion and the § 436 Motion to Strike/Demurrer are deficient on their face. The First Amended Complaint remains substantially pleaded, and your opposition notably omits controlling Supreme Court precedent.

Regardless of your efforts to manufacture total immunity for insurance companies and their counsel, independent actions can and do arise from extrinsic fraud, such as misrepresentations made to the court regarding pretrial discovery and possession. That's a typical deny posture. These misrepresentations are well-documented in the record.

The court's reliance on the candor of your firm and its financial backer, CSAA, led to adverse rulings against me based on inaccurate statements regarding the possession of records. This constitutes a violation of the law and is the definition of extrinsic fraud intended to inhibit my ability to present evidence in a fair manner.

I maintain the right to seek equity from the court on this matter. You will need to provide a substantive explanation for these misrepresentations and demonstrate how they were not prejudicial given the specific rulings made against me.

Anti-SLAPP: Fails at prong 1 because an independent action to set aside a judgment for extrinsic fraud is not "arising from" protected activity (Kulchar, Silberg, Park). Fails at prong 2 because Plaintiff tenders prima facie evidence of concealment and process-abuse. Privilege arguments collapse because § 47(b) does not reach extrinsic fraud.

§ 436 MTS / Demurrer: Fails because (a) extrinsic-fraud vacatur is a recognized cause of action (Kulchar, Stevenot, Rappleyea); (b) damage items are not "irrelevant" as a matter of law (PH II); (c) collateral estoppel requires actual litigation of the extrinsic-fraud issue, which by definition did not occur (Lucido); and (d) at worst, leave to amend defeats any cure-able defect (Blank, Goodman).

Regards,

Dylan Rosario

CODE OF CIVIL PROCEDURE § 128.7 SAFE-HARBOR LETTER

Case No.: CGC-25-631801

Case: ROSARIO v. CSAA INSURANCE EXCHANGE, et al.

Re: Defendant's Motion to Strike under CCP § 436 filed April 22, 2026

Service Date: April 22, 2026

21-Day Clock Expiration: May 14, 2026, 5:00 p.m. Pacific

VIA ELECTRONIC SERVICE

April 22, 2026

Phillips, Spallas & Angstadt, LLP

Attn: Priya D. Navaratnasingham, Esq.

Alberto Reyna, Esq.

560 Mission Street, Suite 1010

San Francisco, CA 94105

Email: pnavaratnasingham@psalaw.com; areyna@psalaw.com

Carbone, Smith & Koyama, LLP

Attn: Michael R. Chambers, Esq.

555 12th Street, Suite 1250

Oakland, CA 94607-4095

Email: mchambers@csk-law.com

Re: Safe-Harbor Notice Under CCP § 128.7(c)(1) — CGC-25-631801

Dear Counsel:

Pursuant to Code of Civil Procedure § 128.7(c)(1), this letter serves as formal notice that Plaintiff intends to file a motion for sanctions under § 128.7 against Defendants and/or their counsel of record based on the filing of Defendants' Motion to Strike under CCP § 436 dated April 22, 2026.

I. STATUTORY FRAMEWORK

Code of Civil Procedure § 128.7(b) provides that by presenting a pleading, written motion, or other paper to the court, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances:

“(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

“(2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

“(3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.”

II. DEFECTS IN THE MOTION TO STRIKE

Plaintiff contends that Defendants’ Motion to Strike violates § 128.7(b) in at least the following particulars:

Defect 1: CCP § 435(b)(1) Timing Violation

The motion to strike under CCP § 436 was not filed concurrently with or before Defendants’ demurrer and anti-SLAPP motion. CCP § 435(b)(1) requires that a motion to strike “shall be made within the time allowed to respond to a pleading, however, if a demurrer is also filed, the motion to strike shall be made at the same time as the demurrer is filed and shall be noticed for hearing at the same time.” Defendants’ demurrer was filed April 3, 2026. The MTS was filed April 22, 2026—19 days late and waived as a matter of law.

Defect 2: CCP § 435.5 Meet-and-Confer Deficiency

Defendants’ MTS does not contain a § 435.5 declaration demonstrating that counsel “met and conferred” with Plaintiff in person, by telephone, or by video conference before filing the motion, as required by § 435.5(a). The statute requires actual oral communication—not email or letter—at least five days before the motion is filed. No such declaration is attached.

Defect 3: CCP § 430.80 Waiver Doctrine — PH II

The motion seeks to strike allegations on grounds that constitute demurrer grounds in disguise. Under *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682–83, a motion to strike cannot be used as a “backdoor demurrer” to attack the sufficiency of a cause of action. The MTS improperly invokes CCP § 436(b) to challenge legal sufficiency arguments that belong in a demurrer, which Defendants already filed and waived the MTS timing for.

Defect 4: Frivolous *Throckmorton* Argument

The MTS relies on *United States v. Throckmorton* (1878) 98 U.S. 61, a non-binding federal case superseded by California Supreme Court authority: *Kulchar v. Kulchar* (1969) 1 Cal.3d 467; *In re Marriage of Modnick* (1983) 33 Cal.3d 897; *Estate of Sanders* (1985) 40 Cal.3d 607. Reliance on non-binding authority while ignoring controlling Supreme Court precedent is not warranted by existing law.

Defect 5: Misrepresentation of Procedural Posture

The MTS argues allegations are “unsupported” without acknowledging that Plaintiff has lodged certified transcript excerpts documenting the February 28, 2025 judicial-reliance colloquy and the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213:13–15). The factual contentions have evidentiary support.

Defect 6: Improper Purpose — Harassment and Delay

The MTS was filed on the last possible day to gain maximum calendaring delay, notwithstanding that Defendants had already filed a demurrer and anti-SLAPP motion raising substantially overlapping arguments. This suggests an improper purpose to multiply litigation costs and delay resolution.

III. SAFE-HARBOR NOTICE AND DEADLINE

Pursuant to CCP § 128.7(c)(1), Defendants have **21 days** from the date of service of this letter to withdraw or appropriately correct the challenged paper.

Service Date: April 22, 2026

21-Day Safe-Harbor Deadline: May 14, 2026, 5:00 p.m. Pacific

If Defendants do not withdraw or correct the Motion to Strike by the safe-harbor deadline, Plaintiff intends to file a motion for sanctions under § 128.7 on the next court day following expiration (May 15, 2026), seeking:

1. Reasonable expenses, including attorney’s fees (or self-represented litigant out-of-pocket expenses), incurred in responding to the MTS;
2. An order striking the MTS in its entirety as frivolous and filed for improper purpose;
3. Such other sanctions as the Court deems appropriate under § 128.7(d).

IV. WITHDRAWAL INSTRUCTIONS

To avoid a sanctions motion, Defendants may withdraw the Motion to Strike by:

1. Filing a Notice of Withdrawal with the Court; and
2. Serving Plaintiff with a copy of the Notice of Withdrawal by 5:00 p.m. Pacific on May 14, 2026.

If the MTS is corrected rather than withdrawn, Plaintiff reserves the right to assess whether the corrections are adequate under § 128.7(b).

V. RESERVATION OF RIGHTS

This letter does not waive any objection to the MTS, including but not limited to procedural defenses, evidentiary objections, and requests for sanctions under CCP § 128.5. Plaintiff reserves the right to file opposition papers addressing the MTS on the merits while preserving this § 128.7 safe-harbor notice.

Respectfully,

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

This safe-harbor letter is served pursuant to CCP § 128.7(c)(1) and is not filed with the Court unless the safe-harbor period expires without withdrawal or correction.

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;
DEFENDANTS

Case No.: CGC-25-631801
(Related: CGC-21-594102)

PROOF OF SERVICE
(CCP § 1013a(3) / § 1010.6)

PROOF OF SERVICE (CCP § 1013A(3) / § 1010.6)

STATE OF CALIFORNIA

COUNTY OF SONOMA

I, FRANCISCUS DYLAN ROSARIO, declare as follows:

I am over the age of 18 years and am not a party to this action. My residence address is 7624 Melody Drive, Rohnert Park, CA 94928.

On **April 22, 2026**, I served the following documents:

DOCUMENTS SERVED

1. § 128.7 Safe-Harbor Letter (801)
2. CMC Trial-Date Preservation Statement (801)
3. Notice of Related Cases (CRC 3.300)
4. Ex Parte Application for Stay of MTS (801)
5. Declaration of Rosario ISO Ex Parte Application (801)
6. [Proposed] Order Staying MTS (801)
7. Notice of Motion to Strike Defendant's MTS (Meta-Strike) (801)
8. Memorandum of Points and Authorities ISO Meta-Strike (801)
9. Declaration of Rosario ISO Meta-Strike (801)
10. Request for Judicial Notice ISO Meta-Strike (801)
11. [Proposed] Order Granting Meta-Strike (801)
12. Errata and Supplemental Declaration re SAC-Leave Packet (801)
13. TAC-RESPONSE Contingent Filing Packet (801) — 7 documents:
 - 00-FILING-INDEX.md
 - 01-NOTICE-OF-MOTION-FOR-LEAVE-TO-FILE-TAC.md
 - 02-MEMORANDUM-ISO-LEAVE-TAC.md
 - 03-DECLARATION-OF-ROSARIO-ISO-LEAVE.md
 - 04-REQUEST-FOR-JUDICIAL-NOTICE.md
 - 05-PROPOSED-ORDER-GRANTING-LEAVE.md
 - 06-THIRD-AMENDED-COMPLAINT.md
 - 07-CURE-MATRIX-DEFENSE-OBJECTION-MAP.md

PERSONS SERVED

BY ELECTRONIC SERVICE under Code of Civil Procedure § 1010.6:

Name	Firm	Email
Priya D. Navaratnasingham, Esq.	Phillips, Spallas & Angstadt, LLP	pnavaratnasingham@psalaw.com
Alberto Reyna, Esq.	Phillips, Spallas & Angstadt, LLP	areyna@psalaw.com
Michael R. Chambers, Esq.	Carbone, Smith & Koyama, LLP	mchambers@csk-law.com

MANNER OF SERVICE

Electronic Service: I caused the above documents to be transmitted via electronic mail to each person listed above at the email address(es) set forth above, pursuant to Code of Civil Procedure § 1010.6 and California Rules of Court, rule 2.251.

Electronic service was completed before **5:00 p.m. Pacific Time** on April 22, 2026.

DECLARATION

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 22, 2026, at Rohnert Park, California.

